CFI 069/2024 (1) Keshav Global Trading Llc (2) Keshav Global Private Limited v ETG Commodities Holdings Limited

JANUARY 19, 2026 COURT OF FIRST INSTANCE - ORDERS

Claim No. CFI 069/2024

IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

(1) KESHAV GLOBAL TRADING LLC

(2) KESHAV GLOBAL PRIVATE LIMITED

Claimants

and

ETG COMMODITIES HOLDINGS LIMITED

Defendant

ORDER WITH REASONS OF H.E. JUSTICE SIR JEREMY COOKE

UPON the Part 7 Claim Form dated 26 September 2024 (the "Claim")

AND UPON the Order of H.E. Justice Sir Jeremy Cooke dated 16 December 2025 (the "Order")

AND UPON the Defendant's Statement of Costs dated 10 December 2025

AND UPON the Defendant's written submissions on costs dated 6 January 2026

AND UPON the Claimant's response to the Defendant's submissions dated 12 January 2026

AND PURSUANT TO the Rules of the DIFC Courts ("RDC")

IT IS HEREBY ORDERED THAT:

1. The Defendant shall pay the costs of the Claimants of the Preliminary Issues assessed in the sum of USD 80,000.

2. The Defendant shall pay the costs of the Claimants of the Unless Order Application of 20 June 2025, the Second Security for Costs Application dated 22 August 2025 and the CMC, assessed in the sums of USD 20,000, USD 15,000 and USD 35,000 respectively.

3. The assessed costs of USD 150,000 referred to in paragraphs 1 and 2 of this Order shall be paid by the Defendant to the Claimants within 21 days of the date of this Order.

Issued By:

Delvin Sumo

Assistant Registrar

Date of issue: 19 January 2026

At: 3pm

SCHEDULE OF REASONS

1. There is nothing in the submissions of the Defendant which changes the provisional views expressed in the Schedule of Reasons to the Order dated 16 December 2025. The Defendants failed in their attempt to have the Claim dismissed on the basis of the determination of those issues.

2. By paragraph 8 of the order dated 29 September 2025, the Court ordered that the costs of the Unless Order Application of 20 June 2025, the Second Security for Costs Application dated 22 August 2025 and the costs of the CMC should be cost in the Preliminary Issues.

3. Whilst the Claimants engaged Counsel for these hearings and did not engage solicitors, with the result that the Claimants' costs are not therefore directly comparable with those of the Defendant, and the Defendant undertook most of the documentary preparation which would normally have been the Claimants' responsibility, it does not lie in the mouth of the Defendant to cavil at the costs of the Claimants which are so much less than the amounts expended by the Defendants. I have taken into account both the burden of establishing the reasonableness and proportionality of the costs incurred and the absence of solicitors which affects the work to be done by Counsel for the Claimants and have discounted the sums claimed by the Claimants by approximately 30% (the Preliminary Issue costs), 25% (the Unless Order Application costs) 25% (the Second Security for Costs Application) and 30% (the CMC) .